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EXAMINER	
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3663	

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Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

uspatents@gtclawgroup.com

Office Action Summary	Application No. 19/223,437	Applicant(s) Fang et al.	
	Examiner ADAM ALHARBI	Art Unit 3663	AIA (First Inventor to File) Status Yes

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

1)☑ Responsive to communication(s) filed on 05/30/2025.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☐ This action is **FINAL.** 2b) ☑ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

5) ☑ Claim(s) 1-20 is/are pending in the application.

5a) Of the above claim(s) _____ is/are withdrawn from consideration.

6) ☐ Claim(s) _____ is/are allowed.

7) ☑ Claim(s) 1-18 and 20 is/are rejected.

8) ☑ Claim(s) 19 is/are objected to.

9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to **PPHfeedback@uspto.gov.**

Application Papers

10)☐ The specification is objected to by the Examiner.

11)☑ The drawing(s) filed on 05/30/2025 is/are: a)☑ accepted or b)☐ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

12)☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

a)☐ All b)☐ Some** c)☐ None of the:

1.☐ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

1) ☑ Notice of References Cited (PTO-892)

2) ☐ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date _____.

3) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date _____.

4) ☐ Other: _____.

DETAILED ACTION

Notice of Pre-AIA or AIA Status

The present application, filed on or after March 16, 2013, is being examined under the first inventor to file provisions of the AIA.

Status of Claims

This Office Action is in response to the application filed on May 30, 2025. Claims 1-20 are presently pending and are presented for examination.

Double Patenting

Claims 1-7, 10-11, and 13 are provisionally rejected on the ground of nonstatutory double patenting as being unpatentable over claims 1, 5-6, 8, 16, 20, and 22 of copending Application No. 19/223,431 as follows:

Instant Application's claims	Copending Application's claims
1	1
3	5 and 6
4	8
5	6
6	5
7	16

10	20
11	22
13	1

Although the claims at issue are not identical, they are not patentably distinct because the copending application claims recite substantially the same policy-based vehicle data collection architecture, including a policy acquisition circuit, a policy processing circuit configured to generate parsed policy data, and a policy execution circuit configured to collect vehicle data from vehicle end points.

The current claims merely add a vehicle data transmission circuit, a vehicle status data adjustment circuit, and a vehicle status data collection change value used to modify collection and transmission operations. However, the copending application already recites vehicle data collection based on driver information descriptions, device condition descriptions, end point performance descriptions, trigger conditions, diagnostic information, and location description values. These descriptions constitute types of vehicle status information used to control vehicle data collection.

Accordingly, the recited vehicle status data collection change value and the associated collection and transmission adjustments represent obvious implementations of the policy-controlled vehicle data collection framework already recited in the copending application. Reference in under 35 U.S.C. 103 rejection below teaches the limitation and therefore it would have been obvious to modify the other application to include the limitation(s) in this application.

This is a provisional nonstatutory double patenting rejection because the patentably indistinct claims have not in fact been patented.

The nonstatutory double patenting rejection is based on a judicially created doctrine grounded in public policy (a policy reflected in the statute) so as to prevent the unjustified or improper timewise extension of the "right to exclude" granted by a patent and to prevent possible harassment by multiple assignees. A nonstatutory double patenting rejection is appropriate where the conflicting claims are not identical, but at least one examined application claim is not patentably distinct from the reference claim(s) because the examined application claim is either anticipated by, or would have been obvious over, the reference claim(s). See, e.g., In re Berg, 140 F.3d 1428, 46 USPQ2d 1226 (Fed. Cir. 1998); In re Goodman, 11 F.3d 1046, 29 USPQ2d 2010 (Fed. Cir. 1993); In re Longi, 759 F.2d 887, 225 USPQ 645 (Fed. Cir. 1985); In re Van Ornum, 686 F.2d 937, 214 USPQ 761 (CCPA 1982); In re Vogel, 422 F.2d 438, 164 USPQ 619 (CCPA 1970); In re Thorington, 418 F.2d 528, 163 USPQ 644 (CCPA 1969).

A timely filed terminal disclaimer in compliance with 37 CFR 1.321(c) or 1.321(d) may be used to overcome an actual or provisional rejection based on nonstatutory double patenting provided the reference application or patent either is shown to be commonly owned with the examined application, or claims an invention made as a result of activities undertaken within the scope of a joint research agreement. See MPEP § 717.02 for applications subject to examination under the first inventor to file provisions of the AIA as explained in MPEP § 2159. See MPEP § 2146 *et seq*. for applications not subject to examination under the first inventor to file provisions of the AIA. A terminal disclaimer must be signed in compliance with 37 CFR 1.321(b).

The filing of a terminal disclaimer by itself is not a complete reply to a nonstatutory double patenting (NSDP) rejection. A complete reply requires that the terminal disclaimer be accompanied by a reply requesting reconsideration of the prior Office action. Even where the NSDP rejection is provisional the reply must be complete. See MPEP § 804, subsection I.B.1. For a reply to a non-final Office action, see 37 CFR 1.111(a). For a reply to final Office action, see 37 CFR 1.113(c). A request for reconsideration

while not provided for in 37 CFR 1.113(c) may be filed after final for consideration. See MPEP §§ 706.07(e) and 714.13.

The USPTO Internet website contains terminal disclaimer forms which may be used. Please visit www.uspto.gov/ patent/patents-forms. The actual filing date of the application in which the form is filed determines what form (e.g., PTO/SB/25, PTO/SB/26, PTO/AIA/25, or PTO/AIA/26) should be used. A web-based eTerminal Disclaimer may be filled out completely online using web-screens. An eTerminal Disclaimer that meets all requirements is auto-processed and approved immediately upon submission. For more information about eTerminal Disclaimers, refer to www.uspto.gov/ patents/apply/applying-online/eterminal-disclaimer.

Claim Rejections - 35 USC § 103

In the event the determination of the status of the application as subject to AIA 35 U.S.C. 102 and 103 is incorrect, any correction of the statutory basis for the rejection will not be considered a new ground of rejection if the prior art relied upon, and the rationale supporting the rejection, would be the same under either status.

The following is a quotation of 35 U.S.C. 103 which forms the basis for all obviousness rejections set forth in this Office action:

> A patent for a claimed invention may not be obtained, notwithstanding that the claimed invention is not identically discloses as set forth in section 102, if the differences between the claimed invention and the prior art are such that the claimed invention as a whole would have been obvious before the effective filing date of the claimed invention to a person having ordinary skill in the art to which the claimed invention pertains. Patentability shall not be negated by the manner in which the invention was made.

The factual inquiries set forth in *Graham v. John Deere Co.*, 383 U.S. 1, 148 USPQ 459 (1966), that are applied for establishing a background for determining obviousness under 35 U.S.C. 103 are summarized as follows:

1. Determining the scope and contents of the prior art.
2. Ascertaining the differences between the prior art and the claims at issue.

3. Resolving the level of ordinary skill in the pertinent art.
4. Considering objective evidence present in the application indicating obviousness or nonobviousness.

This application currently names joint inventors. In considering patentability of the claims the examiner presumes that the subject matter of the various claims was commonly owned as of the effective filing date of the claimed invention(s) absent any evidence to the contrary. Applicant is advised of the obligation under 37 CFR 1.56 to point out the inventor and effective filing dates of each claim that was not commonly owned as of the effective filing date of the later invention in order for the examiner to consider the applicability of 35 U.S.C. 102(b)(2)(C) for any potential 35 U.S.C. 102(a)(2) prior art against the later invention.

Claims 1-3, 5-6, 10-11, 13 and 20 are rejected under 35 U.S.C. 103 as being unpatentable over U.S. Pat. No. 9773360 (hereinafter, "Kim") in view of U.S. Pub. No. 2017/0132853 (hereinafter, "Matos").

Regarding claim **1,** Kim discloses **an apparatus comprising:**

a policy acquisition circuit structured to interpret a vehicle policy data value ("parsing, by a parser, the logging policies stored at the logging policy storage" (Col. 3, lines 32-33)) **comprising vehicle status data** ("techniques for collecting a variety of vehicle data (e.g., sensor data, control data, network data, etc.), which is generated in real-time during operation of the vehicle" (Col. 1, lines 25-28)**;**

a policy processing circuit structured to generate, in response to and based at least in part on the vehicle policy data value, parsed policy data ("extract the variable data and the policy data from the respective logging policies which are parsed by the parser" (Col. 2, lines 54-55)) **that comprises a vehicle data collection description** ("selectively collect the vehicle data based on a logging policy which defines data collection specification (e.g., types of collected data" (Col. 1, lines 36-39))**;**

a policy execution circuit structured to collect vehicle data … in response to the parsed policy data ("The policy data can also be read with parsing and includes information such as type and characteristics of vehicle data to be collected, type of vehicle network, topology (e.g., number of CAN channels, database computer (DBC) file version, etc.), method of collecting vehicle data, and the like" (Col 5, lines, 44-49))**;**

a vehicle status data adjustment circuit structured to interpret a vehicle status data collection change value ("a logging policy interpreter configured to extract profile data, variable data, and policy data from the plurality of logging policies" (Col. 2, lines 6-9) and "variable data used to determine policy data used to collect vehicle data" (Col. 2, lines 31-33));

However, Kim does not explicitly teach

… from one or more end points of at least one network zone of a vehicle …;

a vehicle data transmission circuit structured to transmit at least a portion of the collected vehicle data; and

wherein at least one of:

the policy execution circuit further structured to adjust collecting vehicle data in response to the vehicle status data collection change value; or

the vehicle data transmission circuit further structured to adjust transmitting the at least a portion of the collected vehicle data in response to the vehicle status data collection change value.

Matos, in the same field of endeavor, teaches

… from one or more end points of at least one network zone of a vehicle ("collecting data from sensor systems in a network" (para 0016), "a plurality of Mobile APs (or OBUs), each communicatively coupled to a Fixed AP (or RSU), where each Mobile AP may provide network access to a vehicle network (e.g., comprising vehicle networks, user devices, sensor devices, etc.)" (para 0150), and "interfacing with

a sensor system, various communication links between various network nodes (e.g., Cloud nodes, sensors, etc.) that may communicate to determine a data collection strategy" (para 0165)) **...;**

a vehicle data transmission circuit ("The OBU may also, for example, comprise a manager that manages machine-to-machine data acquisition and transfer (e.g., in a real-time or delay-tolerant fashion) to and from the Cloud. For example, the OBU may log and/or communicate information of the vehicles" (para 0038)) **structured to transmit at least a portion of the collected vehicle data** ("the data collection plan is continually adapting, a change in a data collection plan (or a portion thereof)" (0211)), **and wherein at least one of:**

the policy execution circuit further structured to adjust collecting vehicle data in response to the vehicle status data collection change value or the vehicle data transmission circuit further structured to adjust transmitting the at least a portion of the collected vehicle data in response to the vehicle status data collection change value ("a data collecting node operating in accordance with the example method 800 may detect a condition, the data collecting node may receive a signal from any of a variety of sources indicating that a condition has changed, etc. In an example implementation, block 840 may comprise receiving information of various detected conditions from any sensor, from a driver (e.g., human or autonomous vehicle control system), from an OBD system, from another node of the network, etc." (para 0187) and "the data collection strategy may at least temporarily be modified to emphasize the collection and/or communication of sensor data associated with the vehicle (e.g., vehicle operational sensors, vehicle cameras and/or microphones, sensors within range of the vehicle, sensors of user devices within or within the range of the vehicle, etc." (para 0189)).

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Matos in order to provide the necessary or desired amount of data to be collected; see Matos at least at [0157].

Regarding claim **2,** Kim discloses **the apparatus of claim 1.** Additionally, Kim discloses **wherein the vehicle status data adjustment circuit is further structured to interpret the vehicle status data collection change value** ("a logging policy interpreter configured to extract profile data, variable data, and policy data from the plurality of logging policies" (Col. 2, lines 6-9) and "variable data used to determine policy data used to collect vehicle data" (Col. 2, lines 31-33)) **...**

However, Kim does not explicitly teach

... in response to an operating condition of the vehicle.

Matos, in the same field of endeavor, teaches

... in response to an operating condition of the vehicle ("determining if any detected condition and/or event has occurred that may warrant a change in the data collection plan (or strategy). Any of a variety of conditions may, for example, justify modification of the data collection plan" (para 0185) and "condition may, for example, include detected vehicle conditions (e.g., by on-board diagnostic sensors, etc.)" (para 0197)).

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Matos in order to warrant a change in the data collection plan according to vehicle condition; see Matos at least at [0197].

Regarding claim **3,** Kim discloses **the apparatus of claim 1.** Additionally, Kim discloses **wherein the vehicle status data adjustment circuit is further structured to interpret the vehicle status data collection change value** ("a logging policy interpreter configured to extract profile data, variable data, and policy data from the plurality of logging policies" (Col. 2, lines 6-9) and "variable data used to determine policy data used to collect vehicle data" (Col. 2, lines 31-33))...

However, Kim does not explicitly teach

... in response to an event occurrence.

Matos, in the same field of endeavor, teaches

… in response to an event occurrence ("determining if any detected condition and/or event has occurred that may warrant a change in the data collection plan (or strategy). Any of a variety of conditions may, for example, justify modification of the data collection plan" (para 0185)).

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Matos in order to warrant a change in the data collection plan according to detected condition and/or event; see Matos at least at [0185].

Regarding claim **5,** Kim discloses **the apparatus of claim 3.** However, Kim does not explicitly teach **wherein the vehicle status data further comprises a trigger condition, and wherein the vehicle status data adjustment circuit is further structured to determine the event occurrence in response to the trigger condition.**

Matos, in the same field of endeavor, teaches

wherein the vehicle status data further comprises a trigger condition, and wherein the vehicle status data adjustment circuit is further structured to determine the event occurrence in response to the trigger condition ("determining if any detected condition and/or event has occurred that may warrant a change in the data collection plan (or strategy). Any of a variety of conditions may, for example, justify modification of the data collection plan" (para 0185) and "The example method 800 may begin executing in response to any of a variety of causes or conditions. For example, while a vehicle is parked in a garage, in response to a power-up condition, in response to an engine starting, in response to a vehicle beginning to move, etc.). Accordingly, the scope of this disclosure is not limited by characteristics any particular initiating cause or condition" (para 0160)).

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Matos in order to warrant a change in the data collection plan according to detected condition and/or event; see Matos at least at [0185].

Regarding claim **6,** Kim discloses **the apparatus of claim 5.** However, Kim does not explicitly teach **wherein the trigger condition comprises at least one condition selected from the conditions consisting of:**

an event detection condition;

a vehicle status value; or

a vehicle operating condition value.

Matos, in the same field of endeavor, teaches

wherein the trigger condition comprises at least one condition selected from the conditions consisting of:

an event detection condition ("Such data collection may, for example, be adjusted dynamically in response to various conditions (e.g., external events, security issues, emergency conditions" (para 0154))**;**

a vehicle status value ("determining if any detected condition and/or event has occurred that may warrant a change in the data collection plan (or strategy). Any of a variety of conditions may, for example, justify modification of the data collection plan" (para 0185) and "condition may, for example, include detected vehicle conditions (e.g., by on-board diagnostic sensors, etc.). For example, detection of an anomaly in the operation of the vehicle" (para 0197))**; or**

a vehicle operating condition value ("the data collection strategy may at least temporarily be modified to emphasize the collection and/or communication of sensor data associated with the vehicle (e.g., vehicle operational sensors, vehicle cameras and/or microphones, sensors within range of the vehicle, sensors of user devices within or within the range of the vehicle, etc.)" (para 0189))**.**

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Matos in order to warrant a change in the data collection plan according to detected condition and/or event; see Matos at least at [0185].

Regarding claim **10,** Kim discloses **the apparatus of claim 9.** However, Kim does not explicitly teach **wherein the priority comprises an on-vehicle data storage priority or a transmission priority.**

Matos, in the same field of endeavor, teaches

wherein the priority comprises an on-vehicle data storage priority or a transmission priority ("data collection associated with waste pick-up (e.g., garbage can fullness and location, etc.) may have a relatively high priority, while data from other sources (e.g., street cameras, user devices, etc.) might have a relatively low priority. Also, for example, data from sources associated with vehicle and/or passenger safety may have a relatively high priority (in general), while data from other sources (e.g., outdoor temperature sensors, street cameras, etc.) may have a relatively low priority" (para 0174) and "Conditions may, for example, have changed such that the data has been characterized as time critical and in need of immediate communication, taking priority over other information that is also in need of communication. Adjusting the data collection plan in any of a variety of manners (e.g., modifying an amount of other data to be communicated, shifting data collecting and/or communication responsibilities to other data collecting nodes that have the necessary collecting and/or communication resources)" (para 0196))**.**

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Matos in order to dynamically change priorities in response to real-time needs or conditions; see Matos at least at [0173].

Regarding claim **11,** Kim discloses **the apparatus of claim 9.** However, Kim does not explicitly teach **wherein the priority comprises an on-vehicle transmission priority corresponding to at least one network zone of the vehicle.**

Matos, in the same field of endeavor, teaches

wherein the priority comprises an on-vehicle transmission priority corresponding to at least one network zone of the vehicle ("Also for example, data from sources associated with vehicle and/or

passenger safety may have a relatively high priority (in general), while data from other sources (e.g., outdoor temperature sensors, street cameras, etc.) may have a relatively low priority" (para 0174)).

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Matos in order to dynamically change priorities in response to real-time needs or conditions; see Matos at least at [0173].

Regarding claim **13,** Kim discloses **an apparatus comprising:**

a policy acquisition circuit structured to interpret a vehicle policy data value ("parsing, by a parser, the logging policies stored at the logging policy storage" (Col. 3, lines 32-33)) **comprising vehicle status data** ("techniques for collecting a variety of vehicle data (e.g., sensor data, control data, network data, etc.), which is generated in real-time during operation of the vehicle" (Col. 1, lines 25-28)**, and to update a data collection policy in response to the vehicle policy data value** ("selectively collect the vehicle data based on a logging policy which defines data collection specification (e.g., types of collected data" (Col. 1, lines 36-39))**;**

a policy processing circuit structured to generate, in response to and based at least in part on the updated data collection policy, parsed policy data ("extract the variable data and the policy data from the respective logging policies which are parsed by the parser" (Col. 2, lines 54-55)) **that comprises a vehicle data collection description** ("selectively collect the vehicle data based on a logging policy which defines data collection specification (e.g., types of collected data" (Col. 1, lines 36-39))**;**

a policy execution circuit structured to collect vehicle data … in response to the parsed policy data ("The policy data can also be read with parsing and includes information such as type and characteristics of vehicle data to be collected, type of vehicle network, topology (e.g., number of CAN channels, database computer (DBC) file version, etc.), method of collecting vehicle data, and the like" (Col 5, lines, 44-49))**; and**

However, Kim does not explicitly teach

… from one or more end points of at least one network zone of a vehicle

a vehicle data transmission circuit structured to transmit at least a portion of the collected vehicle data.

Matos, in the same field of endeavor, teaches

… from one or more end points of at least one network zone of a vehicle ("OBU may also be referred to herein as a mobile access point, Mobile AP, MAP, etc. The OBU may, for example, comprise a plurality of networking interfaces (e.g., Wi-Fi, 802.11p, 4G, Bluetooth, UWB, etc.). The OBU may, for example, be readily installed in or on private and/or public vehicles" (para 0033) and "the OBU may comprise a network interface (e.g., 802.11a/b/g/n, 802.11ac, 802.11af, any combination thereof, etc.) to provide wireless local area network (WLAN) connectivity to end user devices, sensors" (para 0036));

a vehicle data transmission circuit ("The OBU may also, for example, comprise a manager that manages machine-to-machine data acquisition and transfer (e.g., in a real-time or delay-tolerant fashion) to and from the Cloud. For example, the OBU may log and/or communicate information of the vehicles" (para 0038)) **structured to transmit at least a portion of the collected vehicle data** ("the data collection plan is continually adapting, a change in a data collection plan (or a portion thereof)" (0211))**.**

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Matos in order to provide the necessary or desired amount of data to be collected; see Matos at least at [0157].

Regarding claim **20,** Kim discloses **the apparatus of claim 13.** However, Kim does not explicitly teach **wherein the vehicle policy data value further comprises a trigger condition, and wherein the policy execution circuit is further structured to collect vehicle data further in response to the trigger condition.**

Matos, in the same field of endeavor, teaches

wherein the vehicle policy data value further comprises a trigger condition, and wherein the policy execution circuit is further structured to collect vehicle data further in response to the trigger condition ("determining if any detected condition and/or event has occurred that may warrant a change in the data collection plan (or strategy). Any of a variety of conditions may, for example, justify modification of the data collection plan" (para 0185) and "The example method 800 may begin executing in response to any of a variety of causes or conditions. For example, while a vehicle is parked in a garage, in response to a power-up condition, in response to an engine starting, in response to a vehicle beginning to move, etc.). Accordingly, the scope of this disclosure is not limited by characteristics any particular initiating cause or condition" (para 0160)).

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Matos in order to warrant a change in the data collection plan according to detected condition and/or event; see Matos at least at [0185].

Claim 4 is rejected under 35 U.S.C. 103 as being unpatentable over U.S. Pat. No. 9773360 (hereinafter,"Kim"), in view of U.S. Pub. No. 2017/0132853 (hereinafter,"Matos") as applied to claim 3 above, and in further view of U.S. Pub. No. 2012/0053778 (hereinafter,"Colvin").

Regarding claim **4,** Kim discloses **the apparatus of claim 3.** However, Kim does not explicitly teach **wherein the vehicle status data adjustment circuit is further structured to determine the event occurrence by performing at least one operation selected from the operations consisting of:**

determining a fault condition value;

determining a fault count value;

determining a diagnostic parameter value;

determining a fault confirmation value;

determining a diagnostic confirmation value;

determining a fault intermediate value; or

determining a diagnostic intermediate value.

Colvin, in the same field of endeavor, teaches

wherein the vehicle status data adjustment circuit ("Remote computer 72 conveys data 74 which includes one or more of configuration data and diagnostic data, The configuration data is used to modify the functions implemented by the processor. Modifications includes, but are not limited to, changing the amount of operational data, changing an amount of operational data collected" (para 0049)) **is further structured to determine the event occurrence** ("detection of an anomalous vehicle condition identified by analyzing the operational data" (para 0010)) **by performing at least one operation selected from the operations consisting of:**

determining a fault condition value;

determining a fault count value;

determining a diagnostic parameter value;

determining a fault confirmation value;

determining a diagnostic confirmation value;

determining a fault intermediate value; or

determining a diagnostic intermediate value ("monitoring the operational data to detect an anomalous condition (i.e., to detect a fault code, manufacturer defined or user defined). Where vehicle diagnosis is to be performed in real-time" (para 0013) and "send the buffered operational data to the remote computing device based on a trigger event (such as an operator trigger, a fault code detected by some other processor, or an anomalous condition detected by processor" (para 0061))**.**

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Colvin in order to send operational data based on a fault code detected; see Colvin at least at [0061].

Claims 7-9 and 12 are rejected under 35 U.S.C. 103 as being unpatentable over U.S. Pat. No. 9773360 (hereinafter, "Kim"), in view of U.S. Pub. No. 2017/0132853 (hereinafter, "Matos") as applied to claim 1 above, and in further view of U.S. Pub. No. 2004/0267410 (hereinafter, "Duri").

Regarding claim **7,** Kim discloses **the apparatus of claim 1.** Additionally, Kim discloses **wherein the vehicle status data adjustment circuit is further structured to interpret the vehicle status data collection change value** ("a logging policy interpreter configured to extract profile data, variable data, and policy data from the plurality of logging policies" (Col. 2, lines 6-9) and "variable data used to determine policy data used to collect vehicle data" (Col. 2, lines 31-33)) ...

However, Kim does not explicitly teach

... in response to a location description value.

Duri, in the same field of endeavor, teaches

... in response to a location description value ("The privacy policy can specify which ASP is to receive telematics information, which items of telematics information are to be provided, during which times, and under what circumstances...a privacy policy can specify that a first ASP is to receive location information for a vehicle while the vehicle is within a first geographic region" (para 0079)).

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Duri in order to select items of telematics data that can be provided to the requestor as specified by the privacy policy; see Duri at least at [0084].

Regarding claim **8,** Kim discloses **the apparatus of claim 7.** However, Kim does not explicitly teach **wherein the location description value comprises at least one description selected from the descriptions consisting of:**

a geographic location value;

a jurisdiction value;

a relative location value; or

a defined geographic region value.

Duri, in the same field of endeavor, teaches

wherein the location description value comprises at least one description selected from the descriptions consisting of:

a geographic location value;

a jurisdiction value;

a relative location value; or

a defined geographic region value ("The privacy policies can include various rules for selectively making telematics data available to the ASP's. For example, the rules can include, but are not limited to, temporal rules, geographic or location-based rules, event-based rules, and vehicle diagnostic rules" (para 0009))**.**

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Duri in order to select items of telematics data that can be provided to the requestor as specified by geographic or location-based rules; see Duri at least at [0009].

Regarding claim **9,** Kim discloses **the apparatus of claim 7.** However, Kim does not explicitly teach **wherein the policy execution circuit is responsive to the vehicle status data collection change value to:**

prevent collection of at least a portion of the vehicle data in response to the location description value,

commence collection of at least a portion of the vehicle data in response to the location description value,

adjust a formatting of at least a portion of the vehicle data in response to the location description value, or

adjust a priority associated with at least a portion of the vehicle data in response to the location description value.

Duri, in the same field of endeavor, teaches

wherein the policy execution circuit is responsive to the vehicle status data collection change value to:

prevent collection of at least a portion of the vehicle data in response to the location description value ("The privacy policies can include various rules for selectively making telematics data available to the ASP's. For example, the rules can include, but are not limited to, temporal rules, geographic or location-based rules, event-based rules, and vehicle diagnostic rules" (para 0009) and "a data owners privacy policy includes an event-based constraint specifying that location data is to be released only if an airbag is deployed within the vehicle, but also includes a geographic, or spatial, rule specifying that location data should be released only if the vehicle is within New York" (para 0082)),

commence collection of at least a portion of the vehicle data in response to the location description value ("receive telematics information, which items of telematics information are to be provided, during which times, and under what circumstances… receive location information for a vehicle while the vehicle is within a first geographic region" (para 0079)),

adjust a formatting of at least a portion of the vehicle data in response to the location description value ("The privacy policy can specify which ASP is to receive telematics information, which items of telematics information are to be provided, during which times, and under what circumstances…a privacy policy can specify that a first ASP is to receive location information for a vehicle while the vehicle is within a first geographic region" (para 0079)); **or**

adjust a priority associated with at least a portion of the vehicle data in response to the location description value ("a relative priority (importance) of response requests from a plurality of

request devices may be changed according to a position, a state, or the like of the vehicle, and therefore" (para 0020)).

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Duri in order to select items of telematics data that can be provided to the requestor as specified by geographic or location-based rules; see Duri at least at [0009].

Regarding claim **12,** Kim discloses **the apparatus of claim 7.** However, Kim does not explicitly teach **wherein the vehicle data transmission circuit is responsive to the vehicle status data collection change value to adjust a priority of the at least a portion of the collected vehicle data in response to the location description value.**

Duri, in the same field of endeavor, teaches

wherein the vehicle data transmission circuit is responsive to the vehicle status data collection change value to adjust a priority of the at least a portion of the collected vehicle data in response to the location description value ("The privacy policy can specify which ASP is to receive telematics information, which items of telematics information are to be provided, during which times, and under what circumstances…a privacy policy can specify that a first ASP is to receive location information for a vehicle while the vehicle is within a first geographic region" (para 0079) and "a relative priority (importance) of response requests from a plurality of request devices may be changed according to a position, a state, or the like of the vehicle, and therefore" (para 0020)).

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Duri in order to select items of telematics data that can be provided to the requestor as specified by the privacy policy; see Duri at least at [0084].

Claims 14-18 are rejected under 35 U.S.C. 103 as being unpatentable over U.S. Pat. No. 9773360 (hereinafter, "Kim"), in view of U.S. Pub. No. 2017/0132853 (hereinafter, "Matos") as

applied to claim 13 above, and in further view of U.S. Pub. No. 2020/0039534 (hereinafter, "DiPietro").

Regarding claim **14,** Kim discloses **the apparatus of claim 13.** However, Kim does not explicitly teach **wherein the data collection policy comprises a built-in policy, wherein the vehicle policy data value comprises one of a factory policy or a downloaded policy, and wherein the policy acquisition circuit is further structured to update the data collection policy by replacing the data collection policy with a policy determined in response to the vehicle policy data value.**

DiPietro, in the same field of endeavor, teaches

wherein the data collection policy comprises a built-in policy ("local vehicle policies are executable by the vehicle on-board computing device to operate the vehicle" (para 0065))**, wherein the vehicle policy data value comprises one of a factory policy or a downloaded policy** ("adjusting, by the vehicle on-board computing device, one or more local vehicle policies of the vehicle based on the received enterprise-wide policy" (para 0003))**, and wherein the policy acquisition circuit is further structured to update the data collection policy by replacing the data collection policy with a policy determined** ("making policy changes (i.e., data can be collected at the vehicle, ... reduces the amount of information transmitted along networks... allow for the collection of data and the generation of policy changes" (para 0021) and "dynamically create a new policy or modify an existing policy. Rules can be used to determine when to modify an existing policy or create a new policy" (para 0058)) **in response to the vehicle policy data value** ("A message including the policy and/or configuration settings is then sent in 406 from the computing device 106 to the vehicle software agent, ... optionally updates 408 the policies and/or configuration settings. Such updating depends on whether there are any differences with the currently programmed policies/parameters values and those specified in the message" (para 0056))**.**

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of DiPietro in order to update local policies based on local data; see DiPietro at least at [0022].

Regarding claim **15,** Kim discloses **the apparatus of claim 13.** However, Kim does not explicitly teach **wherein the data collection policy comprises a built-in policy, wherein the vehicle policy data value comprises one of a factory policy or a downloaded policy, and wherein the policy acquisition circuit is further structured to update the data collection policy by:**

generating an update policy by adding compatible portions of the built-in policy to a policy determined in response to the vehicle policy data value; and

replacing the data collection policy with the update policy.

DiPietro, in the same field of endeavor, teaches

wherein the data collection policy comprises a built-in policy ("local vehicle policies are executable by the vehicle on-board computing device to operate the vehicle" (para 0065))**, wherein the vehicle policy data value comprises one of a factory policy or a downloaded policy** ("adjusting, by the vehicle on-board computing device, one or more local vehicle policies of the vehicle based on the received enterprise-wide policy" (para 0003))**, and wherein the policy acquisition circuit is further structured to update the data collection policy by:**

generating an update policy by adding compatible portions of the built-in policy to a policy determined in response to the vehicle policy data value ("making policy changes (i.e., data can be collected at the vehicle, … reduces the amount of information transmitted along networks… allow for the collection of data and the generation of policy changes" (para 0021))**; and**

replacing the data collection policy with the update policy ("create a new policy or modify an existing policy (e.g., periodically or at specified times). Rules can be used to determine when to modify an existing policy or create a new policy" (para 0058))**.**

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of DiPietro in order to update local policies based on local data; see DiPietro at least at [0022].

Regarding claim **16,** Kim discloses **the apparatus of claim 13.** However, Kim does not explicitly teach **wherein the data collection policy comprises a factory policy, wherein the vehicle policy data value comprises a downloaded policy, and wherein the policy acquisition circuit is further structured to update the data collection policy by replacing the data collection policy with a policy determined in response to the vehicle policy data value.**

DiPietro, in the same field of endeavor, teaches

wherein the data collection policy comprises a factory policy ("local vehicle policies are executable by the vehicle on-board computing device to operate the vehicle" (para 0065))**, wherein the vehicle policy data value comprises a downloaded policy** ("synchronize a vehicle policy with a centralized policy server securely over a network (e.g., the Internet or World Wide Web)" (para 0023))**, and wherein the policy acquisition circuit is further structured to update the data collection policy by replacing the data collection policy with a policy determined** ("making policy changes (i.e., data can be collected at the vehicle, … reduces the amount of information transmitted along networks… allow for the collection of data and the generation of policy changes" (para 0021) and "dynamically create a new policy or modify an existing policy. Rules can be used to determine when to modify an existing policy or create a new policy" (para 0058)) **in response to the vehicle policy data value** ("A message including the policy and/or configuration settings is then sent in 406 from the computing device 106 to the vehicle software agent, … optionally updates 408 the policies and/or configuration settings. Such updating depends on whether there are any differences with the currently programmed policies/parameters values and those specified in the message" (para 0056))**.**

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of DiPietro in order to update local policies based on local data; see DiPietro at least at [0022].

Regarding claim **17,** Kim discloses **the apparatus of claim 13.** However, Kim does not explicitly teach **wherein the data collection policy comprises a factory policy, wherein the vehicle policy data value comprises a downloaded policy, and wherein the policy acquisition circuit is further structured to update the data collection policy by:**

generating an update policy by adding compatible portions of the factory policy to a policy determined in response to the vehicle policy data value; and

replacing the data collection policy with the update policy.

DiPietro, in the same field of endeavor, teaches

wherein the data collection policy comprises a factory policy ("local vehicle policies are executable by the vehicle on-board computing device to operate the vehicle" (para 0065))**, wherein the vehicle policy data value comprises a downloaded policy** ("synchronize a vehicle policy with a centralized policy server securely over a network (e.g., the Internet or World Wide Web)" (para 0023))**, and wherein the policy acquisition circuit is further structured to update the data collection policy by:**

generating an update policy by adding compatible portions of the factory policy to a policy determined in response to the vehicle policy data value ("making policy changes (i.e., data can be collected at the vehicle, … reduces the amount of information transmitted along networks… allow for the collection of data and the generation of policy changes" (para 0021))**; and**

replacing the data collection policy with the update policy ("create a new policy or modify an existing policy (e.g., periodically or at specified times). Rules can be used to determine when to modify an existing policy or create a new policy" (para 0058))**.**

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of DiPietro in order to update local policies based on local data; see DiPietro at least at [0022].

Regarding claim **18,** Kim discloses **the apparatus of claim 13.** However, Kim does not explicitly teach **wherein the policy acquisition circuit is further structured to update the data collection policy by appending a requested policy determined in response to the vehicle policy data value to the data collection policy.**

DiPietro, in the same field of endeavor, teaches

wherein the policy acquisition circuit is further structured to update the data collection policy by appending a requested policy determined in response to the vehicle policy data value to the data collection policy ("making policy changes (i.e., data can be collected at the vehicle, … reduces the amount of information transmitted along networks… allow for the collection of data and the generation of policy changes" (para 0021) and "dynamically create a new policy or modify an existing policy. Rules can be used to determine when to modify an existing policy or create a new policy" (para 0058)).

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of DiPietro in order to change data that can be collected at the vehicle based on policy changes; see DiPietro at least at [0021].

Allowable Subject Matter

Claim **19** is objected to as depending on a rejected claim but may be found allowable if re-written in independent form including all intervening claims. Reasons for indicating allowable subject matter will be provided once one or more claims is in a state of allowance.

Conclusion

Any inquiry concerning this communication or earlier communications from the examiner should be directed to ADAM ALHARBI whose telephone number is (313)446-6621. The examiner can normally be reached on M-F 11:00AM – 7:30PM EST.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at http://www.uspto.gov/interviewpractice.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Abby Flynn can be reached on (571) 272-9855. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see https://ppair-my.uspto.gov/pair/PrivatePair. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/ADAM M ALHARBI/
Primary Examiner, Art Unit 3663